

Complaint

Filed: March 3, 2025 District ECF No. 1 Civil Action No. SYN-NDWV-25-CV-0618

United States District Court for the Northern District of West Virginia

Pleading designation: Asterglen's original two-count complaint.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

Plaintiff Asterglen Freight Software, Inc. alleges as follows:

1. This action concerns unauthorized expansion of a limited software pilot and the commercial use of Asterglen's BeaconRoute platform beyond the twelve terminals licensed by written agreement.
2. Asterglen and Copper Kestrel Logistics, LLC signed a Pilot License on April 15, 2024. The writing identified twelve licensed terminals and established a written change process for any requested expansion.
3. Copper Kestrel later proposed adding twenty-nine terminals. Asterglen evaluated that proposal under stated load-test conditions, but the parties did not execute the proposed change order.
4. Meridian Silt Holdings, LLC undertook integration work for Copper Kestrel. Meridian knew that Asterglen's approval was disputed, yet it continued work after receiving notice of Asterglen's position.
5. Asterglen seeks \$480,000 from Copper Kestrel on Count I and \$360,000 from Meridian Silt on Count II, together with allowable interest, costs, and other relief proved in this action.

Parties, Jurisdiction, and Venue

6. Asterglen is a Virginia corporation with its principal place of business in Richmond, Virginia. It develops and licenses freight-routing tools. Its BeaconRoute platform assigns identifiers to approved terminal environments and supplies routing functions through controlled credentials.
7. Copper Kestrel is a North Carolina limited liability company whose sole member is domiciled in North Carolina. It operates freight terminals, entered the Pilot License as the customer, and communicated with Asterglen about a possible increase in terminal environments.
8. Meridian Silt is a Maryland limited liability company whose sole member is domiciled in Maryland. It provides systems-integration services and contracted separately with Copper Kestrel to assist with configuration, mapping, testing, and deployment activity associated with the proposed expansion.
9. The parties are of diverse citizenship, and the amount in controversy exceeds \$75,000 exclusive of interest and costs. This Court therefore has subject-matter jurisdiction under 28 U.S.C. § 1332.
10. Venue is proper in this District because a substantial part of the challenged terminal activity and resulting operational effects occurred here. The Pilot License selects Virginia substantive law; that contractual choice does not displace federal venue in this District.
11. The Court may grant damages and other relief arising from the same transaction or occurrence. Asterglen pleads the two counts against separate defendants because their alleged duties and conduct differ, although evidence about terminal access, provisioning, and July communications overlaps.
12. No allegation concerning an oral statement should be read to concede that an enforceable written change order existed.

The April 15 Pilot License

13. On April 15, 2024, Asterglen and Copper Kestrel signed the Pilot License attached to this Complaint as District ECF No. 1-1.
14. The Pilot License authorized BeaconRoute access for twelve identified terminals. It did not itself authorize production use at twenty-nine additional terminals.
15. The agreement required changes in licensed scope to be documented through the parties' written change procedure. The writing also addressed credentials, testing access, operational restrictions, and termination.
16. Section 9.2 governs a termination or demand based on material breach. It requires written notice describing the breach and a fifteen-calendar-day opportunity to cure before termination for breach or a demand for breach damages.
17. Asterglen performed the initial provisioning contemplated for the twelve-terminal pilot and supplied access information needed for evaluation. Copper Kestrel received the benefit of that limited authorization.
18. The contract did not transfer ownership of BeaconRoute or permit Copper Kestrel to enlarge the licensed population unilaterally. Access credentials remained subject to the scope and controls stated in the agreement.
19. Asterglen alleges that Copper Kestrel later caused identifiers associated with the proposed expansion to be used beyond the written testing conditions. Copper Kestrel disputes both the characterization of that activity and Asterglen's application of Section 9.2.
20. All conditions to Asterglen's performance were satisfied, excused, or prevented by defendants, except obligations that Asterglen was not required to perform after the disputed expansion.

Proposed Expansion and Written Conditions

21. On June 3, 2024, Copper Kestrel sent a proposed change order requesting twenty-nine additional terminals. The proposal was not signed by Asterglen and did not become an executed amendment.
22. Asterglen reviewed the requested expansion to determine whether the platform could sustain the anticipated traffic. That technical review required temporary identifiers and representative data; it did not necessarily authorize live operational deployment.
23. On June 10, 2024, Asterglen sent written load-test conditions. Those conditions limited access to controlled testing, required monitoring, preserved the twelve-terminal license boundary, and stated that commercial expansion required a completed written change.
24. Copper Kestrel retained Meridian Silt for integration work under a statement of work dated June 14, 2024. Asterglen was not a party to that statement of work.
25. The Meridian Silt engagement contemplated configuration for the proposed terminal group, but a contract between Copper Kestrel and its integrator could not alter Asterglen's separate license.
26. By July 1, 2024, forty-one BeaconRoute identifiers had been provisioned in total: twelve associated with the signed pilot and twenty-nine associated with the proposed expansion. Provisioning made technical evaluation possible; Asterglen alleges it did not resolve the allowed use of those identifiers.
27. Defendants later relied on a July 8 conversation as permission for broader activity. Asterglen denies giving oral approval for unrestricted production use and relies on the written conditions already in force.

July Communications and Audit

28. Participants from Asterglen, Copper Kestrel, and Meridian Silt spoke on July 8, 2024. Their records of the conversation do not agree.
29. Copper Kestrel contends that Asterglen orally permitted the expansion to proceed. Meridian Silt understood the discussion as allowing integration activity. Asterglen understood it as permission to continue a bounded load test under the June 10 written conditions.
30. No signed change order followed the call. Asterglen did not issue a writing that replaced the twelve-terminal limit or removed the testing restrictions.
31. Asterglen conducted a compliance audit dated July 18, 2024. The audit compared the contract inventory, provisioning records, activity logs, and available integration information.
32. The audit reported forty-one provisioned identifiers and activity Asterglen regarded as inconsistent with the limited pilot. It distinguished the existence of an identifier from contractual permission to use that identifier in production.
33. Copper Kestrel maintained that any excess activity reflected the parties' agreed test and could be reduced promptly. Copper Kestrel represented that restoring the active set to twelve terminals was feasible within three business days.
34. Meridian Silt had access to the written conditions and knew that Asterglen had not signed the June 3 proposal. Asterglen alleges Meridian Silt nonetheless assisted conduct beyond the permitted test.
35. The audit and the parties' competing July 8 accounts are central to both claims. Asterglen does not allege that provisioning alone establishes liability; it alleges unauthorized operational use together with notice and continued conduct.

July 22 Termination and Count I

36. On July 22, 2024, Asterglen disabled a shared staging credential and sent Copper Kestrel a notice terminating the Pilot License and demanding \$480,000 in contract damages.
37. The notice treated termination and the damages demand as immediately effective. It did not provide any period in which Copper Kestrel could reduce the active terminal set or otherwise cure the stated breach.
38. Copper Kestrel responded that it could complete the requested reduction within three business days and asked Asterglen to permit that work. Asterglen did not withdraw the termination or open a cure period.
39. Asterglen alleges that Copper Kestrel had already materially exceeded the licensed scope, repudiated the written change protections, and caused measurable loss. Copper Kestrel contends Section 9.2 barred immediate termination and breach damages because the notice afforded zero cure days.

Count I — Breach of Contract Against Copper Kestrel

40. Asterglen incorporates paragraphs 1 through 39 as if stated here.
41. The Pilot License was a valid contract supported by consideration. Asterglen performed its enforceable obligations or was excused from further performance.
42. Copper Kestrel breached by using, directing the use of, or permitting BeaconRoute access beyond the written scope and outside the stated testing conditions.
43. Asterglen calculates \$348,000 in additional license value and \$132,000 in response, containment, and forensic-review costs, for total claimed contract harm of \$480,000.
44. Asterglen seeks judgment for that amount. It disputes Copper Kestrel's construction of Section 9.2 and alleges that the circumstances excused further opportunity to cure; alternatively, it preserves any remedy available for conduct not cured.

Count II — Interference Against Meridian Silt

45. Asterglen incorporates the factual allegations concerning the Pilot License, proposed expansion, June written conditions, July 8 call, and July 18 audit.
46. Meridian Silt knew of Asterglen's contractual relationship with Copper Kestrel. Its June 14 statement of work depended on access to BeaconRoute and identified tasks associated with the additional terminals.
47. Meridian Silt also knew that the June 3 change order remained proposed and that Asterglen had stated written limits for load testing. Those facts put Meridian Silt on notice that broader production activity required confirmation.
48. Asterglen alleges that Meridian Silt intentionally facilitated use beyond the twelve licensed terminals, encouraged Copper Kestrel to treat the July 8 discussion as expansion approval, and continued integration activity despite Asterglen's contrary notice.
49. Meridian Silt's conduct was not privileged because, as alleged, it exceeded legitimate testing assistance and induced or assisted Copper Kestrel's nonperformance of the Pilot License.
50. The interference caused separate commercial injury, including disruption of Asterglen's licensing process, uncompensated integration burdens, and loss associated with unauthorized expansion.
51. Asterglen seeks \$360,000 on Count II. It will prove the measure of that harm without obtaining a double recovery for injury also included in Count I.
52. Meridian Silt continued work through July 25, 2024, after the termination notice. Asterglen alleges that this continuation aggravated the interference; Meridian Silt contends it was orderly shutdown and preservation work.

Prayer for Relief and Jury Demand

Asterglen respectfully requests that the Court:

- A. Enter judgment against Copper Kestrel on Count I in the amount of \$480,000, subject to proof and any lawful adjustment;
- B. Enter judgment against Meridian Silt on Count II in the amount of \$360,000, while preventing duplicative recovery for the same injury;
- C. Award pre-judgment and post-judgment interest to the extent allowed by law;
- D. Award recoverable costs and any contractual relief established by the evidence;
- E. Declare the parties' rights concerning the twelve-terminal license, the unsigned twenty-nine-terminal proposal, and the written load-test conditions only insofar as necessary to decide the pleaded claims; and
- F. Grant other relief the Court finds just and proper.

Asterglen demands a jury trial on all issues triable by jury. The requested adjudication will require consideration of the April 15 Pilot License, the June 3 proposal, the June 10 conditions, the June 14 integration statement of work, the provisioning ledger through July 1, the disputed July 8 communications, the July 18 audit, and the July 22–25 correspondence. Asterglen reserves the right to amend its allegations as permitted by the Federal Rules of Civil Procedure and the Court's scheduling orders.

Respectfully submitted on March 3, 2025.

Counsel for Asterglen Freight Software, Inc. Authorized counsel designation